Master Services Agreement

This Master Services Agreement (the "**Agreement**") is entered into as of 07 December 2024 (the "**Effective Date**") between **Arcadia Retail Inc.**, a retailer with its headquarters in the United States (the "**Customer**"), and **Vantage Telecom Services Inc** (the "**Supplier**"). The Customer and the Supplier are each a "**Party**" and together the "**Parties**".

This Agreement consists of these master terms, Schedule 1 (Service Levels and Service Credits) and Order Form No. 1. Key commercial terms are set out in the Order Form and are incorporated into these master terms by reference.

1. Definitions and Interpretation

1.1 In this Agreement:

"**Confidential Information**" means all non-public information, in any form, disclosed by or on behalf of a Party to the other in connection with this Agreement that is marked confidential or would reasonably be understood to be confidential, including the terms of this Agreement.

"**Fees**" means the fees set out in the Order Form.

"**Order Form**" means Order Form No. 1 to this Agreement and any further order form signed by both Parties that refers to this Agreement.

"**Services**" means the telecommunications and related IT services described in the Order Form.

"**Service Levels**" means the service levels set out in Schedule 1 and the Order Form.

"**Term**" means the Initial Term and each Renewal Term under clause 2.

1.2 If there is a conflict, these master terms prevail over a Schedule, and a Schedule prevails over an Order Form, unless the Order Form expressly states that it overrides a specified provision of these master terms.

2. Term and Renewal

2.1 This Agreement begins on the Effective Date and, unless terminated earlier in accordance with its terms, continues until 07 December 2029 (the "**Initial Term**"), being a period of 60 months.

2.2 At the end of the Initial Term and of each Renewal Term, this Agreement renews automatically for a successive period of 12 months (each a "**Renewal Term**") unless a Party gives the other at least 180 days' written notice of non-renewal before the end of the then-current term.

3. Services

3.1 The Supplier shall provide the Services to the Customer in accordance with this Agreement and the Order Form, with due skill, care and diligence, using suitably qualified personnel and in compliance with applicable law.

3.2 The Customer shall provide the cooperation, access and information reasonably required by the Supplier to perform the Services, and the Supplier is not responsible for delay or failure to the extent caused by the Customer's failure to do so, provided the Supplier promptly notifies the Customer of the failure.

3.3 Changes to the Services or the Order Form take effect only when set out in a written change order signed by both Parties.

4. Service Levels and Reporting

4.1 The Supplier shall meet the Service Levels. Without limitation, the Supplier shall ensure that the Services are available at least 99.99% of the time in each month, and shall notify the Customer of any security incident affecting the Services or the Customer's Confidential Information within 4 hours of becoming aware of it.

4.2 The Supplier shall provide the Customer with a report each month setting out its performance against the Service Levels, and shall apply the service credits calculated in accordance with Schedule 1 for any failure to meet them.

4.3 Service credits are a price adjustment reflecting reduced value of the Services and are without prejudice to the Customer's other rights and remedies, including termination under clause 11, but any service credits paid or credited in respect of an event shall be taken into account in any damages awarded for the same event.

5. Fees, Invoicing and Payment

5.1 The Customer shall pay the Fees set out in the Order Form. The annual Fees are USD 1,320,000 and the total contract value over the Initial Term is USD 6,600,000.

5.2 The Supplier shall invoice the Fees in accordance with the Order Form. Each invoice must be valid, meaning that it is addressed to the Customer, identifies the Services and period invoiced, and quotes the applicable purchase order or Agreement reference.

5.3 The Customer shall pay undisputed invoices within 60 days of receipt of a valid invoice.

5.4 If the Customer disputes any invoice in good faith, it shall notify the Supplier promptly, pay any undisputed portion, and the Parties shall work together to resolve the dispute promptly. Payment of an invoice is not an acceptance of the Services invoiced.

5.5 Unless the Order Form states otherwise, the Fees are exclusive of applicable sales, use and similar taxes, which the Customer shall pay where properly chargeable and shown on a valid invoice. Each Party is responsible for taxes on its own income.

6. Confidentiality

6.1 The receiving Party shall keep the other Party's Confidential Information confidential, use it only to perform or receive the benefit of this Agreement, and disclose it only to its employees, contractors and professional advisers who need to know it and are bound by equivalent obligations of confidentiality.

6.2 Clause 6.1 does not apply to information that is or becomes public other than through breach of this Agreement, was lawfully known to the receiving Party before disclosure, is lawfully received from a third party without restriction, or is independently developed without use of the Confidential Information.

6.3 A Party may disclose Confidential Information to the extent required by law, court order or regulatory authority, provided that, where lawful, it gives the other Party prompt notice and reasonable cooperation to seek protective treatment.

6.4 The obligations in this clause 6 survive for 3 years after this Agreement ends.

7. Intellectual Property

7.1 Each Party retains all rights in the intellectual property it owned before the Effective Date or develops independently of this Agreement.

7.2 The Customer retains all rights in its data and materials provided to the Supplier ("**Customer Materials**") and grants the Supplier a non-exclusive, non-transferable licence to use them solely to provide the Services.

7.3 Unless the Order Form states otherwise, the Supplier retains ownership of the tools, software and know-how it uses to provide the Services and grants the Customer a non-exclusive, non-transferable right to use any deliverables and materials provided as part of the Services for the Customer's internal business purposes during and after the Term.

8. Warranties

8.1 Each Party warrants that it has full power and authority to enter into and perform this Agreement.

8.2 The Supplier warrants that the Services will be performed with reasonable skill and care and in accordance with the Order Form (the "**Services Warranty**"). No express warranty period applies, and the Services Warranty applies to the Services throughout the Term.

8.3 Except as expressly stated in this Agreement, and to the extent permitted by law, all other warranties, conditions and terms, whether express or implied, are excluded.

9. Indemnity

9.1 The Supplier shall defend and indemnify the Customer against losses, damages and reasonable costs finally awarded or agreed in settlement arising out of a third-party claim that the Services, as provided under this Agreement, infringe that third party's intellectual property rights, or arising from the Supplier's gross negligence or wilful misconduct.

9.2 The indemnified Party shall give prompt notice of the claim, allow the indemnifying Party sole control of the defence and settlement (provided no settlement admits fault on behalf of the indemnified Party without its consent, not to be unreasonably withheld), and provide reasonable assistance at the indemnifying Party's cost.

9.3 The Supplier has no obligation under clause 9.1 to the extent a claim arises from the Customer Materials, the Customer's modification of the Services, or use of the Services in breach of this Agreement.

10. Limitation of Liability and Insurance

10.1 Subject to clauses 10.3 and 10.4, each Party's aggregate liability to the other arising out of or in connection with this Agreement, whether in contract, tort (including negligence) or otherwise, is limited to one (1) times the Fees paid or payable in the twelve (12) months preceding the claim.

10.2 Subject to clause 10.3, neither Party is liable for any indirect, consequential or special loss, or for loss of profit, revenue or goodwill, arising out of or in connection with this Agreement.

10.3 Nothing in this Agreement limits or excludes liability for fraud, wilful misconduct, death or personal injury caused by negligence, or any liability that cannot be limited or excluded by law.

10.4 The Customer's obligation to pay undisputed Fees is not subject to the cap in clause 10.1.

10.5 The Supplier shall maintain throughout the Term, with reputable insurers, insurance cover of at least USD 5,000,000 per claim, and shall provide evidence of that cover on the Customer's reasonable request.

11. Termination

11.1 Neither Party may terminate this Agreement for convenience. This Agreement may be terminated only in accordance with this clause 11.

11.2 Either Party may terminate this Agreement by written notice to the other if the other Party:

(a) commits a material breach that is incapable of remedy; or commits a material breach capable of remedy and fails to remedy it within 30 days of written notice requiring it to do so; or

(b) becomes insolvent, makes an assignment for the benefit of creditors, has a receiver or trustee appointed over its assets, or becomes the subject of bankruptcy or similar proceedings.

11.3 The Customer may terminate this Agreement for cause by written notice if the Supplier repeatedly or persistently fails to meet the Service Levels, to the extent set out in Schedule 1.

11.4 On termination or expiry, the Supplier shall return or securely delete the Customer Materials and Confidential Information on request, and the Parties shall cooperate in good faith to provide for an orderly transition of the Services for a reasonable period, at the Fees then in effect. Accrued rights and the provisions of clauses 1, 5 (as to sums accrued), 6, 7, 10, 12, 13 and 14 survive termination or expiry.

12. Data Protection and Security

12.1 The Parties acknowledge that the Services do not involve the processing of personal data. The Supplier shall not access, collect or process personal data of the Customer, its personnel or its customers in the course of providing the Services.

12.2 If the Parties agree to change the Services so that personal data will be processed, they shall first agree in writing appropriate data protection terms by change order under clause 3.3.

12.3 The Supplier shall maintain appropriate administrative, technical and physical safeguards to protect the Services and the Customer's Confidential Information against unauthorised access, loss or disclosure, and shall notify security incidents as required by clause 4.1.

13. Governing Law and Disputes

13.1 This Agreement and any dispute arising out of or in connection with it are governed by the laws of Texas, without regard to its conflict-of-laws rules.

13.2 The Parties shall first attempt to resolve any dispute through good-faith discussions between senior executives. If the dispute is not resolved within a reasonable time, either Party may commence proceedings in the state or federal courts located in Texas, which have exclusive jurisdiction, and each Party submits to that jurisdiction. Nothing prevents a Party from seeking urgent injunctive relief from any competent court.

14. General

14.1 **Assignment.** Neither Party may assign or transfer this Agreement without the other's prior written consent, not to be unreasonably withheld, except that either Party may assign it to a successor to all or substantially all of its relevant business on written notice.

14.2 **Subcontracting.** The Supplier may subcontract any part of the Services only with the Customer's prior written consent and remains responsible for the acts and omissions of its subcontractors.

14.3 **Force Majeure.** Neither Party is liable for delay or failure to perform (other than payment obligations) caused by events beyond its reasonable control, provided it notifies the other promptly and uses reasonable efforts to resume performance. Force majeure does not excuse the Supplier from implementing its disaster recovery and security measures.

14.4 **Notices.** Notices must be in writing and delivered by hand, by recognised courier or by email with confirmation of delivery, to the address stated in the Order Form (or another address notified in writing). A notice is deemed received on delivery or, for email, on the next business day after sending.

14.5 **Entire Agreement.** This Agreement, including its Schedules and Order Forms, is the entire agreement between the Parties on its subject matter and supersedes all prior discussions and understandings. Each Party acknowledges that it has not relied on any statement not set out in this Agreement.

14.6 **Amendment and Waiver.** Amendments must be in writing and signed by both Parties. A failure or delay in exercising a right is not a waiver of it.

14.7 **Severability.** If any provision is held invalid or unenforceable, the remainder continues in full force and effect.

14.8 **Independent Contractors; Counterparts.** The Parties are independent contractors and nothing in this Agreement creates a partnership, agency or employment relationship. This Agreement may be executed in counterparts, including by electronic signature.

Schedule 1 – Service Levels and Service Credits

1. **Availability.** The Supplier shall ensure that the Services are available at least 99.99% of the time in each calendar month, measured and calculated as set out in the Order Form, excluding only scheduled maintenance agreed in advance in writing by the Customer.
2. **Security incident notification.** The Supplier shall notify the Customer of any security incident within 4 hours of becoming aware of it, giving the information then known and updating the Customer as further information emerges.
3. **Monthly SLA report.** Within a reasonable period after the end of each month, as specified in the Order Form, the Supplier shall deliver a report showing measured availability, incidents, notification times and service credits accrued.
4. **Service credits.** If a Service Level is not met in a month, the Customer is entitled to a service credit calculated in accordance with the credit table in the Order Form, which the Supplier shall apply against the next invoice or, if no further invoice is due, pay to the Customer within a reasonable period after the end of this Agreement.
5. **Persistent failure.** Persistent failure to meet a Service Level, as defined in the Order Form, constitutes a material breach for the purposes of clause 11.2(a) and entitles the Customer to terminate under clause 11.3.

Order Form No. 1

Item	Term
Customer	Arcadia Retail Inc.
Supplier	Vantage Telecom Services Inc
Services	Telecommunications and related IT services as described in the service description agreed by the Parties and attached to this Order Form
Effective Date	07 December 2024
Initial Term	60 months, until 07 December 2029
Renewal	Automatic successive 12-month Renewal Terms unless a Party gives at least 180 days' written notice of non-renewal before the end of the then-current term
Annual Fees	USD 1,320,000
Total contract value (Initial Term)	USD 6,600,000

Item	Term
Invoicing and payment	Undisputed invoices payable within 60 days of receipt of a valid invoice
Availability Service Level	At least 99.99% each month
Security incident notification	Within 4 hours
SLA reporting	Monthly report with service credits
Liability cap	One (1) times the Fees paid or payable in the twelve (12) months preceding the claim
Supplier insurance	At least USD 5,000,000 per claim
Termination for convenience	Not permitted for either Party; termination for cause only
Personal data	Not processed under the Services
Governing law	Laws of Texas

Signatures

Signed by the Parties' authorised representatives.

For Arcadia Retail Inc.	**For Vantage Telecom Services Inc**
Signature: _____	Signature: _____
Name: Michael Brennan	Name: Richard Hale
Title: Chief Procurement Officer	Title: Authorised Signatory
Date: 27 November 2024	Date: 30 November 2024